

TAB 8



Board of Education Report

[Return to Order of Business](#)

File #: Rep-306-22/23, Version: 1

Authorization to Negotiate and Execute a Joint Powers Agreement with the City of Los Angeles for Its Use of the Track, Football Field, Outdoor Pool and Softball Field at Mervyn M. Dymally High School
June 13, 2023
Facilities Services Division

Action Proposed:

Authorize the Chief Facilities Executive, and/or his designee(s), to negotiate and execute a Joint Powers Agreement (JPA), and/or any other reasonable instruments, with the City of Los Angeles (City) for its use of the track, football field, outdoor pool, and softball field at Mervyn M. Dymally High School (School).

Background:

Government Code Section 6500 et seq. allows two public entities to enter into a JPA for the joint exercise of any powers common to the public entities. The City and Los Angeles Unified School District (Los Angeles Unified or District) desire to enter into the JPA based on their mutual determination that the City and Los Angeles Unified both have the power to provide recreational spaces for physical exercise and swimming, a life-saving skill, for residents including the students and community of the School.

The School site was selected as the preferred site for the development of the School because, among other things, the site contained industrial uses, was adjacent to the City's Green Meadows Park (Park) and residential occupants would not be displaced. Prior to the School being developed, on April 20, 2007, Los Angeles Unified and the City executed a Memorandum of Understanding (MOU) to memorialize the District and City's continuing collaboration to establish a joint use agreement for the use of the School by the City for programs run by the City Department of Recreation and Parks (RAP). Initial planning of the School determined that there was insufficient area to develop a full complement of outdoor recreational facilities unless a portion of the track and field extended onto the Park property. Therefore, the MOU also acknowledged that the City, independent of any agreements for joint use, would cooperate with the District to lease a portion of Park to the District to allow for the construction of a track and field complex at the School.

On September 23, 2008, the Board of Education (Board) authorized the use of \$4,400,000 in Bond funds to enhance certain facilities at the School (formerly known as the South Region High School No. 12 Project) and construct a promenade between the School and the Park, which would require the City's vacation of East 88th Place. Upon vacation of East 88th Place, Los Angeles Unified would become the owner of the northern half of the street, approximately thirty feet of East 88th Place (North Property), and the City would become the owner of the southern thirty feet of East 88th Place (South Property). The parties agreed to work together so the City would transfer its fee simple ownership interest in the South Property to Los Angeles Unified. The track and field (Track and Field) was designed to be a competitive California Interscholastic Federation (CIF) facility and a portion of the Track and Field was constructed on Park property with the City's permission.

The School was completed in 2012 and went into operation thereafter. Los Angeles Unified and the City worked together in an effort to come to an agreement that would allow Los Angeles Unified permanent use of the City property. These efforts included a potential land exchange where Los Angeles Unified would transfer

its ownership of the North Property to the City, and the City would transfer the portion of the Park being used for the Track and Field, to Los Angeles Unified. However, the City determined that it could not move forward with an agreement to convey park land to Los Angeles Unified based on limitations imposed by its charter.

The original plan between the parties was to negotiate City's joint use of the entire athletic complex, including a softball field, basketball courts, the swimming pool, and all pool facilities (Pool), Track and Field and the gymnasium, and for the School to use the Park. However, the School has subsequently determined it has no regular need for the Park facilities and the City is now only interested in using the Pool year-round and limited use of the Track and Field and softball field.

Under the proposed terms of the JPA, City will provide lifeguard services to the School during school hours, at Los Angeles Unified's sole cost and expense. After school hours, City, at its sole cost and expense, will provide supervision and staff to operate swim programs at the Pool. Additionally, City will have access to the Track and Field and softball field after school hours during days and times mutually agreed to between the parties. The School will have priority use of the Pool, Track and Field and softball field for Los Angeles Unified and School-sponsored events, activities, and competitive athletics. Los Angeles Unified will maintain the Pool, Track and Field and softball field in accordance with Los Angeles Unified's annual maintenance and operations budget. The City will be responsible for paying Los Angeles Unified all costs related to its use of the Pool, Track and Field and softball field. Also, City agrees to maintain and repair the entire (North and South side) of the pedestrian promenade.

The City's use of the School facilities is contingent upon the City agreeing to allow the portion of the School's Track and Field to remain on the Park property. If at any time during the term of the JPA, which may be up to forty years, City requires Los Angeles Unified to remove the Track and Field from the Park property, the City's right to use the Pool, Track and Field and softball field will terminate.

The School is located within the boundaries of the Rivera Community of Schools, Region South, and Board 7 (Tanya Ortiz Franklin). As of the 2022-2023 Electronic Capacity Assessment Review (E-CAR), the School served 766 students in 9th through 12th grade.

Expected Outcomes:

Authorize staff to negotiate and execute a JPA, and/or any other reasonable instruments, with the City for its use of the Pool, Track and Field and softball field at the School. The execution of the JPA will allow the City to provide much-needed recreational space and programming to the students at the School during the school day and to the community during non-school hours and on weekends. Los Angeles Unified will be able to keep the School's track on City property and the students and community will be able to continue using the Track and Field as constructed.

Board Options and Consequences:

If the proposed action is not approved, staff will be unable to execute the JPA and any other reasonable instruments with the City for the use of the Track and Field, Pool, and softball field at the School. The City will not be able to provide swim programs at the Pool and the students and community will not have access to the Track and Field, Pool, and softball field during after school hours and on the weekends. Furthermore, the students of the School will not benefit from the lifeguards to be provided by the City during school hours and the School will have to resume hiring lifeguards using its own resources. The City will also continue to have the ability to legally force Los Angeles Unified to remove the portion of the track built on City property, which will have a direct impact on the students of the School and the community.

Policy Implications:

This Board action will not change current Los Angeles Unified policy and continues Los Angeles Unified's goal of making school facilities available to the community. This also supports the City's and Los Angeles Unified's continued collaboration in providing much needed programs to the residents of the City of Los Angeles and the surrounding communities.

Budget Impact:

The activities associated with negotiating and executing the JPA with the City requires staff time from the Facilities Services Division and the Office of the General Counsel. The City will pay for all costs associated with its use of the Track and Field, Pool, and softball field, including but not limited to, maintenance, utilities, supplies and custodial support. Funds for lifeguard services provided by the City to the School have been allocated in the budget for pool operational costs and will be funded by Los Angeles Unified's General Fund. The JPA will also reduce the amount of General Funds that Los Angeles Unified would have to expend to maintain and repair the pedestrian promenade.

Student Impact:

Students from the School and surrounding schools, as well as members of the community, will be able to participate in the City's swim programs that would otherwise not be available to them throughout the year.

Equity Impact:

The recreation facility provides the community with organized activities and open recreation for youth and adults with the main purpose of increasing community involvement.

Issues and Analysis:

Los Angeles Unified and the City will negotiate and enter into a JPA for the City's use of the Track and Field, Pool, and softball field. Under the terms and conditions of the proposed JPA, the City, at its sole cost and expense, will be required to provide reasonable staffing or the number of staff required by Los Angeles Unified, to provide supervision for the use of the School for its swim programs and provide adequate security, safety, and supervision at all times during the City's use.

The JPA will also include the City's use of Los Angeles Unified's North Property, with the exclusion of the land where the track was built, which was developed into a pedestrian promenade between the Park and School by Los Angeles Unified. The City will be responsible for maintaining the land at its sole cost and expense for the term of the JPA. Allowing the City's use of this land will allow the public to gain access to the School from the adjacent Park.

The City will continue to allow Los Angeles Unified to use the portion of the Track and Field built on Park property. Los Angeles Unified will continue to be responsible for the maintenance and repair of the Track and Field.

The proposed term of the JPA to be negotiated will be for a period not to exceed forty years. Los Angeles Unified will not be obligated to provide an extension to the JPA at the end of the term. Should the City request to continue its use of the Track and Field, Pool, and softball field, the City and Los Angeles Unified may negotiate a new agreement for the use, subject to Board approval.

Attachments:

Previously adopted Board Report referenced in the Background section:

File #: Rep-306-22/23, Version: 1

- Adopted September 23, 2008: [Board Report No. 66-08/09](https://drive.google.com/file/d/1PbFgalvs0vqGhChQArcRU188jQksucSt/view?usp=sharing)
<<https://drive.google.com/file/d/1PbFgalvs0vqGhChQArcRU188jQksucSt/view?usp=sharing>>

Informatives:

None

Submitted:

05/16/2023

RESPECTFULLY SUBMITTED,

APPROVED BY:



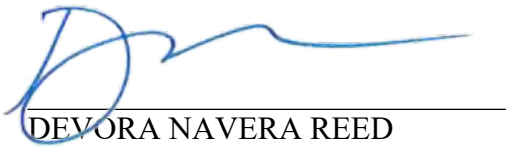
ALBERTO M. CARVALHO
Superintendent



PEDRO SALCIDO
Deputy Superintendent, Business Services and Operations

REVIEWED BY:

APPROVED BY:



DEVORA NAVERA REED
General Counsel

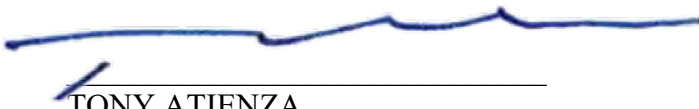


MARK HOVATTER
Chief Facilities Executive
Facilities Services Division

☒ Approved as to form.

REVIEWED BY:

PRESENTED BY:



TONY ATIENZA
Director, Budget Services and Financial Planning



AARON BRIDGEWATER
Director of Facilities Planning and Development
Facilities Services Division

☒ Approved as to budget impact statement.